

credit and estimation; and therefore the matter which shall be a cause of his disfranchisement, ought to be an act or deed, and not a conation, or an endeavour, † which he may repent of before the execution of it, and from whence no prejudice ensues; and they who have offices of trust and confidence shall not forfeit them by endeavours and intentions to do acts, although they declare them by express words, unless the act itself shall ensue, as if one who has the keeping of a park should say, that he will kill all the game within his custody, or will cut down so many trees within the park, but doth not kill any of the game, nor cut down any trees, it is not any forfeiture, *et sic de similibus*, for in all such cases, either there ought to be an Act, or such a negligence as tantamounts, *scil.* when destruction of the game, &c. ensues. If a bishop, archdeacon, parson, &c. fells all the trees, it is a good cause of (a) deprivation, 2 H. 4. 3 b. (c). So if a prior aliens the land which he has *in jure domus sue*, it is a cause of deprivation, as appears in 9 E. 4. 34. a. If a prior makes dilapidation, it is a good cause to deprive him, as it is held in 29 E. 3. 16 a. (20) 28 H. 6. 46 a. But if it be but a conation, or endeavour (b) without any act done, in none of those cases is it any cause of deprivation; for in those cases, *voluntas non reputatur pro facto*. And if a contempt [99 a] (be it of omission or commission) should be a good cause to disfranchise, the best citizen or burgess might be, at one time or other, disfranchised, which would be great cause of faction and contention in cities and boroughs.

As to the second, it was resolved, that no freeman of any corporation (c) can be disfranchised by the corporation, unless they have authority to do it either by the express words of the charter, or by prescription: but if they have not authority neither by charter or by prescription, then he ought to be convicted by course of law before he can be removed; and it appears by Magna Charta, cap. 29. (d) *Nullus liber homo capiatur, vel imprisonetur, aut disseisitur de libero tenemento suo, vel libertatibus, vel liberis consuetudinibus suis, &c. nisi per legale iudicium parium suorum, vel per legem terræ*, and if the corporation have power by charter or prescription to remove him for a reasonable cause, that will be *per legem terræ*; but if they have no such power, he ought to be convicted *per iudicium parium suorum, &c.* as if a citizen, or freeman, be attainted of forgery or perjury, or conspiracy, at the King's suit, &c. or of any other crime whereby he is become infamous, upon such attainder they may remove him: so if he be convicted of any such offence which is against the duty and trust of his freedom, and to the public prejudice of the city or borough whereof he is free, and against his oath, as if he has burnt or defaced the charters, or evidences of the city or borough, or razed or corrupted them, and is thereof convicted and attainted, these and the like are good causes to remove him (D). And although they have lawful

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† 6 Mod. 99.

(a) 20 H. 6. 46 a. 3 Bulst. 167.

(c) *Vid.* note (K) *Liford's case*, ante, p. 49 b.

(b) 6 Co. 42 b.

(c) Styl. 478.

(d) 1 Roll. Rep. 225. 4 Leon. 61.

(D) Any member of a corporation for any offence committed against his oath of office, and breach of his duty as a member, is removeable without any previous conviction. But there must be a previous conviction to warrant an amoval for an offence which has no immediate relation to his office, such as perjury, forgery, &c. Where the offence is criminal in both respects, the difference seems to be, that if it consists of one single fact, as burning the charters of the corporation, bribery, &c. there must be a conviction, but not where it may be considered as abstracted the one from the other; as riot and assault upon any other member, so as to obstruct the business of the corporation. Bull. N. P. 206. citing *Rex v. Mayor of Derby*, 9 Geo. 2. As to such crimes whereof a previous conviction is necessary to found the disfranchisement upon, it is the infamy of them that renders him an improper person to be continued in an office of trust; therefore, if the crime for which he is convicted be such as does not carry such infamy with it, it will be no cause of disfranchisement; as if he were convicted of a single assault. Bull. N. P. *ib.*

"Where the offence is merely against his duty as a corporator, he can only be